

**GeM SAHAY**  
**PRIVACY POLICY**

**1. PRIVACY COMMITMENT**

- (i) This document (**‘Privacy Policy’**) is published by virtue of the legal requirement under the provisions of the Information Technology Act 2000, the Information Technology (Reasonable Security Practices and Procedures And Sensitive Personal Data or Information) Rules, 2011 Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 and other applicable laws and regulations that require publishing of the privacy notice for collection, usage, storage, disclosure and transfer of sensitive personal data or information.
- (ii) The terms "we," "us," and "our" individually and collectively refer to each entity, initiative, offerings that is part of the Government e Marketplace (GeM) and its affiliates, and the terms “You” and “Your” mean anyone who visits, accesses, or uses our Website) or obtains Services from us through our Website and/or Platform (but not limited to registered Sellers).
- (iii) On usage of our Platform, some Personal Information shall be collected from and about you. We state that GeM is strongly committed to protect the privacy of its customers/users and has taken all necessary and reasonable measures in line with applicable laws and regulations to protect and safeguard the confidentiality of your Personal Information and its transmission through our website and/or platform and/or Mobile App (collectively referred to as "**GeM Sahay Platform**").
- (iv) This Privacy Policy sets out the way in which we collect, use, disclose, transfer, protect and store your personal information in connection with the service offered through the GeM Sahay Platform and must be read in conjunction with our Terms of Service.  
<https://gem-sahay.perfios.com/pcg-gem/gemLogin>
- (v) We encourage you to read our Privacy Policy to understand what types of personally identifiable information we collect and how we use this information. GeM Sahay retains an unconditional right to modify or amend these Terms without any requirement to

notify you of the same. It shall be your responsibility to check these Terms periodically for changes. Accordingly, please continue to review the Terms whenever accessing or using the Platform.

## **2. Types of Information we collect**

- (i) Personal Information is data that is collected from you at time of accessing the platform with your explicit consent for processing your Loan request and includes data such as name, address, e-mail address, phone number, date of birth, gender, Aadhaar details, PAN Number, GST details, Bank Account details, and other KYC data you submit to our GeM Sahay Platform to avail various services from us.
- (ii) GeM Sahay Platform collects your information through its platform when you register an account, when you use its products or services, or visits its platform. The aforementioned information may be obtained from your mobile device/ desktop, for the purpose of on-boarding/KYC requirements only, and may include access to mobile's device location, camera, microphone access and SMS features, or such other information that may have been voluntarily provide by you in connection with availing the services on the platform. Necessary permission/consent shall be sought for the same at appropriate stage during the platform usage at all times.
- (iii) You may, in your sole and absolute discretion, choose either: (a) not to provide the information, specific data requisitioned by us in connection with our services from time to time or (b) cancel/revoke your consent so granted to collect your Personal Information and/or communication that you have elected to receive from us in relation to the information you have already shared with us.

## **3. Purpose of obtaining Information**

- (i) The intended purpose of collecting personal information from you as set out above is:
  - a) to administer and provide products and services you request or have expressed an interest in;
  - b) to assist third parties like our business partners and/or service providers in facilitating and delivering products and services to you, process your payments and your applications;
  - c) to communicate with you in the event that any products or services you have

requested;

- d) to create Escrow Account;
- e) to facilitate the loan transactions;
- f) for record keeping purposes, to comply with laws and regulations, and to comply with other legal processes and law enforcement requirements;
- g) to create an individual profile for you so that we can understand and respect your preferences;
- h) to address your requests and queries and manage your relationship with us;
- i) to access your eligibility for our products or services and provide you with such products or services which you may have shown interest in or requested for;
- j) for security and business continuity and risk management;
- k) undertake recovery and collections related actions including sending communications as and when required;
- l) to respond to your queries or feedback submitted by you.

(ii) GeM Sahay will not sell or rent your Personal Information to anyone for commercial purposes to anyone in a way that is contrary to the commitments made and/or other than as set forth in this Privacy Policy. Notwithstanding the foregoing, we may share your information to an affiliate and/or lending partner.

(iii) We may also use third party service providers to provide the Service to you, such as sending e-mail messages on our behalf or hosting and operating a feature or functionality of the Service.

(iv) You also agree and consent to us collecting, storing, processing, transferring and sharing information (including sensitive personal information) related to you with third parties or service providers for the purposes as set out in this Privacy Policy.

(v) All personal data that we collect about you will be recorded, used, and protected by us in accordance with applicable data protection legislation and this Privacy Commitment.

(vi) We may supplement the information that you provide with other information that we obtain from our dealings with you or which we receive from other organizations. You agree and consent for the Platform to disclose your information, if so required, under

applicable law.

- (vii) We will use and retain the information for such periods as necessary to provide you the Services on the Platform, to comply with our legal obligations, to resolve disputes, and enforce the agreements entered into by you and for such other reasons as specified in this document.

#### **4. Disclosing and Sharing with third parties**

Any Personal Information that GeM Sahay have access to may be shared with third parties including but not limited to its Participants (mentioned in “Terms of Service” Policy), vendors, service providers acting on our behalf (as the case may be), banks, credit bureaus, statutory bodies, financial institutions, data processors, telecommunication companies etc. in following cases:

- a) To help complete a transaction initiated by you;
- b) We disclose and share your Personal Information with the lending partners and our third-party partners for facilitation of a loan or facility or line of credit;
- c) We may disclose for verification, personalization of services, credit rating, data enrichment, marketing or promotion of the services provided by us or of any other service provider;
- d) We may share your data with third parties/group companies/ affiliates for the purpose of undertaking recovery and collection activities;
- e) We will disclose the Personal Information to our third-party technology and credit partners to perform credit checks and credit analysis or third party data source providers;
- f) We may disclose your Personal Information, where it is directed or required by legal / regulatory / statutory / governmental authorities /judiciary under any applicable laws / regulations or judicial pronouncement through a legally obligated request.
- g) We will share your Personal Information under a confidentiality agreement with the third parties and restrict use of the said Information by third parties only for the purposes detailed herein. We warrant that there will be no unauthorized disclosure of your personal Information shared with third parties.
- h) No personal information collected by the Participants shall be disclosed or transferred to any third party other than (i) one of the other Participants who is

similarly bound by the terms of this Privacy Policy or (ii) any third-party as may be necessary for the performance by the Participant of its obligations or the exercise of its rights or for such other purposes as are legally or contractually permissible or save as otherwise agreed between such Participant and the Borrower and in accordance with the statutory and regulatory provisions applicable to the Participant.

- i) If you choose to apply for our services, we would be required to disclose information to our affiliates and/or lending partners, then their use of your information is governed by their privacy policies in addition to our Privacy Policy. GeM Sahay is not responsible for their privacy policies.
- j) We may use the personal information to improve its services to you and to keep you updated about its new products or other information that may be of interest to you.
- k) We shall not be held liable for disclosure of the Personal Information when used in accordance with this Privacy Policy or in accordance with the 'Terms of Service'.

## **5. Links to other websites**

Our Platform may contain links to other websites which are not maintained by us. This privacy policy only applies to us. You are requested to read the other websites' privacy policies when visiting these websites.

## **6. Retention of your personal information**

- (i) All personal information collected will retain your Personal Information for as long as it is necessary for providing you the Services available on the Platform.
- (ii) You are responsible for providing us with accurate and complete personal data. Please notify us of any changes to your personal data. GeM shall take reasonable steps to ensure that your personal data is kept accurate, complete, and current.
- (iii) Till the time you are registered seller on the platform of GeM Sahay, we may use your anonymized data aggregated or in combination with anonymized data of other users. We use this aggregated anonymized data for data analysis, profiling and research purposes, for example to gain insights about our users and their profiles. We may keep your contact information along with your application details (if any) for fraud prevention purposes and for the exercise/defense of a legal claim or for providing evidence in legal proceedings.
- (iv) We will take such steps as we consider reasonably necessary to ensure that your information is treated securely and in accordance with this Privacy Policy.

## **7. Reasonable Security Practices and Procedures**

- (i) We take the security of Your information very seriously. To this end, we use several security techniques including secure servers, firewalls and encryptions. We have in place appropriate administrative, technical, physical safeguards and security measures to protect the Personal Information you provide to us against unauthorized, accidental or unlawful loss, damage, alteration, destruction, disclosure, access or use and any other unlawful forms of processing. When we collect data, we collect your personal details on a secure server.
- (ii) While we observe reasonable security measures to protect your Personal Information on our digital platforms, security risks may still arise for reasons outside of our control such as virus dissemination, hacking, force majeure events, breach of firewall etc. Please note that the above mentioned measures do not guarantee absolute protection to the Personal Information.

## **8. Cookie**

Cookie is a small piece of information stored by a web server on a web browser so it can be later read back from that browser the date and time of visits, the pages viewed, time spent at our Platform, and the websites visited just before and just after our Platform. We may use cookie and tracking technology depending on the features offered. No Personal Information will be collected via cookies and other tracking technology; however, if you previously provided Personal Data, cookies may be tied to such information. You will be provided with an option to decline cookie at all times but if you choose to do this it might affect Services provided to you.

## **9. Contact us**

If you have grievance or complaint, questions, comments, concerns or feedback in relation to the processing of information or regarding this Privacy Policy, you may contact in writing to:

Grievance Redressal Officer/Nodal officer:

Mr. Anil Kumar

Email: [executive-admingr3@gem.gov.in](mailto:executive-admingr3@gem.gov.in)

## **10. Governing Law and Jurisdiction**

This Privacy commitment shall be governed by the laws of India and the Courts of New Delhi (India) shall have the exclusive jurisdiction to try disputes arising thereof.